



**ECigIntelligence**

*Regulatory and Market Intelligence for the e-Cigarette Sector*

# Canada's approach to vaping regulation and flavours lies in the election balance

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One of the first tasks facing Canada's incoming health minister after today's federal elections will be the implementation of a new set of federal regulations for vaping products – which may or may not include a planned ban on flavours.

A government consultation on restricting flavours was launched on 19th June and wrapped up on 2nd September, just a couple of weeks after prime minister Justin Trudeau called the election.

ECigIntelligence understands Health Canada received more than 5,000 responses to its consultation on the [legislative proposal](#) to limit vaping flavours to just tobacco and mint. The public health agency received another 600 submissions to a [second consultation](#) on flavours in inhaled cannabis extracts.

“Feedback received during the consultation will be considered in finalising the regulatory proposal,” Health Canada said. What impact the election may have on the plan to restrict flavours remains to be seen. Opinion polls suggest a close election, with Trudeau’s Liberal party neck-and-neck with the opposition Conservatives led by Erin O’Toole.

The Liberal government, which launched [the consultation on restricting flavours](#), also promised to “move forward with a national tax on vaping products,” which it estimates would generate more than \$90m a year.

### **Other parties’ approaches**

In a [recent survey](#) conducted by the Heart and Stroke Foundation, the Conservative Party did not commit to restricting flavours in vaping products.

It said: “A Conservative government will review the regulations related to vaping and vaping-related products in light of ongoing scientific research and the differing approaches taken across international jurisdictions. As Conservatives, we will look to the best available science to inform our regulatory approach.”

The New Democratic Party (NDP), which could end up holding the balance of power under a minority government, favours more restrictions such as new taxes, because “big tobacco companies have cornered Canada’s vaping market [with] attractive flavours, high nicotine content and aggressive advertising”.

“A New Democratic government will curtail marketing for vaping products, comprehensively restrict flavours that appeal to young people, prohibit certain additives and require health warnings,” the party said.

Those who favour restrictions on flavours as well as those who are opposed have waged campaigns to get their supporters to submit feedback to the consultation.

### **‘Make it tougher’**

Protect Canadian Kids, a campaign backed by the Canadian Cancer Society, the Canadian Lung Association, Heart and Stroke, and Physicians for a Smoke-Free Canada, encouraged supporters to e-mail Health Canada with a prepared text, which read: “The proposed federal restrictions are helpful and should be supported, but should be strengthened to remove an exemption that would allow mint and menthol flavours. More comprehensive flavour restrictions will reduce youth vaping and protect public health and should be adopted on an urgent basis.”

The National Public Health Institute of Quebec (INSPQ) endorsed the proposed restrictions on flavour and also recommended restricting mint and menthol to.

[The INSPQ submission](#) stated: “The toxicological risks of flavouring agents are real, concerning and difficult to quantify. Certain ingredients used to reproduce the flavours of mint, menthol and tobacco, exempted by Health Canada, present health risks.

Moreover, the flavouring agents are unstable, especially when heated, and certain ones like menthol and pyrazines could increase the potential of nicotine dependence.”

The Canadian Paediatric Society also called for tougher restrictions, urging Health Canada “to ban the sale of all flavoured vaping products with the exception of tobacco, and to close the proposed regulatory loophole for mint and menthol flavours”.

### **‘Make it easier’**

On the other hand, the Vaping Industry Trade Association (VITA) warned that restricting flavours would lead to an increase in cigarette smoking.

“We are disturbed that in 2021 the government of Canada is proposing regulations that they acknowledge will increase cigarette sales, lead to an unregulated and thriving illicit market and devastate hundreds of small locally owned businesses,” VITA president Daniel David said.

The Canadian Vaping Association (CVA) also predicted that flavour restrictions would result in increased smoking, while the movement Rights4Vapers said in response to the consultation: “We are concerned that the increasing number of proposed changes to vaping regulations across the country, particularly those banning flavours and imposing limits to nicotine strength, will deter smokers from choosing vaping as a safer alternative to smoking or push vapers back to smoking.”

Following the election announcement, Rights4Vapers embarked on a 26-stop tour of Quebec and Ontario with visits to the offices of federal election candidates. The group also launched an online tool that it says has allowed 20,000 Canadians to send Health Canada a message opposing flavour restrictions.

**What This Means:** Once the winning party forms a new Canadian government, a new cabinet – including a new health minister – will be named and all this process could delay the adoption of restrictions on flavoured vaping products at federal level.

The new regulation will come into force 180 days after the government adopts the final version.

– Elizabeth Thompson *ECigIntelligence contributing writer*

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